

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201408503	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/12/2014 12:00 PM	Location of Incident: Atlantic Avenue and East New York Avenue	18 Mo. SOL 2/12/2016	Precinct: 73		
Date/Time CV Reported Tue, 08/19/2014 2:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/19/2014 2:29 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Matthew Schiraldi	13787	944991	073 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Steven Chimienti	00155	939999	073 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Matthew Schiraldi	Discourtesy: PO Matthew Schiraldi spoke rudely to § 87(2)(b)	A . Unsubstantiated			

Case Summary

On August 12, 2014, at approximately 12:00 p.m., § 87(2)(b) was crossing a crosswalk on East New York Avenue and Atlantic Avenue in Brooklyn. There were no traffic lights on this street. Officer Matthew Schiraldi made a right turn onto East New York Avenue, nearly hitting § 87(2)(b) with his car. Neither the lights nor sirens of the RMP were on. Officer Schiraldi rolled down his window and asked § 87(2)(b) "Are you fucking blind?" (**Allegation A**). He then drove away. § 87(2)(b) quickly followed Officer Schiraldi and took a photograph of his RMP on East New York Avenue near Pacific Street. By the time he took the photograph, the RMP was following an ambulance. § 87(2)(b) provided the plate number "4973." § 87(2)(b) was not arrested and did not receive any summonses.

Mediation, Civil and Criminal Histories

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b)
- PO Schiraldi has been a member of service for seven years and there are no substantiated CCRB allegations against him.
- PO Chimienti has been a member of service for eight years and there are no substantiated CCRB allegations against him.

Findings and Recommendations

Allegation – Discourtesy: PO Matthew Schiraldi spoke rudely to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 3, 2014. He alleged that while crossing the intersection of East New York Avenue and Atlantic Avenue, where there are no traffic lights, a uniformed officer operating a marked RMP drove by him and stated, "Are you fucking blind?" The officer was alone in the RMP.

PO Chimienti was interviewed at the CCRB on December 15, 2014. He had no recollection of the incident. On August 12, 2014, PO Chimienti was the recorder in the RMP. At the time of the incident he and PO Schiraldi followed an ambulance transporting an emotionally disturbed person to § 87(2)(b). He did not recall encountering any pedestrians. PO Chimienti did not use any profanity and did not state, "Are you fucking blind?" He did not hear any other officer state this.

PO Schiraldi was interviewed at the CCRB on December 29, 2014. PO Schiraldi stated that on August 12, 2014, he was driving down East New York Avenue with his lights and sirens on and his window down, following an ambulance to § 87(2)(b). In the ambulance were his partner, PO Chimienti, and an emotionally disturbed person. He was alone in the RMP. PO Schiraldi stopped at a red light on East New York Avenue and Pacific Street. When the light turned green, a man walked into the intersection in front of PO Schiraldi's RMP. PO Schiraldi yelled at the man to watch out and get out of the road. He did not recall using any profanity, and did not recall stating, "Are you fucking blind?"

§ 87(2)(g)

It is therefore recommended that **Allegation A be closed as unsubstantiated.**

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date